Winter 2007

The Mountainside

Coolfont Mountainside Association

Volume XI
Issue II

From the President

by Jim Thompson

It was great to see so many of you at the Special Meeting on November 11, 2006, Thanks to all who approved an assessment and budget for the new 2007 fiscal year and extension of the terms of all seven current Board members by six months to align with the new fiscal year.



Jim filling members in on CMA developments!

These changes will improve the transition from one Board to the next by having a few months between elections and the start of the new Board. This will allow new Board members to become familiar with CMA issues and more time to determine how Board members are best suited for the various positions. We can also look forward to Annual Meetings in September when it is cooler and most members are back from vacation.

With these changes in place we can focus more on Coolfont developments and new regulations that align with our Covenants and Restrictions which go into effect next year. As you know, Coolfont Resort is now completely closed and 2007 will be a year of planning and securing approvals for the "New Coolfont". The full impact of the death of Josh Freeman is not yet clear, but his death has not appeared to slow things down.

If you haven't already, please check out the new CMA website at http://newsite.coolfontmountainside.org. Our Webmaster, Bob Borchers, has done a wonderful job of adding new capabilities to the site. It now has a calendar of events, special subject areas and pic-

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Josh Freeman is Killed in Helicopter Crash

by Lois Copeland

Joshua M. Freeman, president and CEO of Carl M. Freeman Companies, that bought Coolfont Recreation last year, was killed in a helicopter crash in Delaware December 14, 2006.

Freeman was leaving a holiday party at one of his properties, Bear Trap Dunes to attend another holiday party in Washington, D.C. The accident took place soon after he boarded the helicopter.

Carl M. Freeman started the development company in



1946. He started building communities for families following World War II.

(cont'd on p 2)

Calendar of Events

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March 10

10 am—Board Meeting CMA office

6:30 pm—Potluck Dinner (TBA)

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April 14

10 am—Board Meeting CMA office

12 N—Firewise Day

6:30 pm—Potluck Dinner (TBA)

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May 19

10 am—Board Meeting CMA office

12 N—Pool Clean-up Day

6:30 pm—Potluck Dinner (TBA)

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May 27-29

Pool Opens

Berkeley Springs Art Tour

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June 9

10 am—Board Meeting CMA office

6:30 pm—Potluck Dinner (TBA)

June 10

CMA Pool Party and Barbecue

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July 14

10 am—Board Meeting CMA office

6:30 pm—Potluck Dinner (TBA)

High Speed Internet for Coolfont

by Jackson Bain

Access to high-speed internet service (HIS) on the mountainside has been difficult for most homeowners, due to the topography and the costs of bringing land-line services along Cold Run Valley Road and into the CMA property. A solution may be available soon, if certain agreements between one vendor and the Town of Bath fall into place.

First, let's look at the status of some of the potential providers of HIS:

- Verizon—the local engineer for Verizon has promised one of our homeowners that the build-out of a land-based DSL service along Cold Run Valley Road will happen "within a month", but that was a couple of months ago. In other WV areas, Verizon's estimates for DSL delivery have been off by more than a year. Verizon's website is www.verizon.net to find out about their build out schedule. **Scheduling installation of DSL is now taking place.**



Access options

- SkyWeb—Emmett Capper, the owner of WDHC radio in Berkeley Springs is already providing HIS to CMA homeowners such as Bob Borchers, Jim Thompson and others with properties high enough o the mountainside to see the radio tower's antenna on the hill above town. Capper has asked the Town of Bath's permission to mount a repeater antenna on top of the water tank on Warm Springs Ridge, just above the old snow-tubing run on town property. This would provide full coverage to all CMA properties for their 1.5 megabits per second service. Approval is expected within a few weeks, with installation and service availability to follow immediately. If you'd like more information on SkyWeb, their website is www.skywebinc.net—their telephone number is (304)258-1976 (WDHC radio).
- DirectTV—some owners with clear views of the southern sky can get

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Freeman Killed

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Josh Freeman did not become a company man following the normal path. He, with objections from his parents, joined the U.S. Army and became a Green Beret, instead of attending college. He began working in the company in 1986 and came up through the ranks.

Josh became president of the company in 1995 and CEO upon the sudden death of his father in 1998.

Freeman had previously set up a succession plan for his company. Frank Edwards, formally Senior Vice President was appointed to succeed Freeman. Locally, Bob Marggraf continues as Vice President and General Manager-West Virginia, Carl M. Freeman Communities. .

Many CMA members are concern about whether plans will change or be put on hold because of Freeman's death. A company spokesperson assured everyone that the proposed Coolfont development will proceed according to plan.

Freeman took an active role since buying Coolfont. He visited Berkeley Springs every month and was present at the charrette in the fall.

Everyone is still in shock over his untimely death!

Freeman lived on his family farm in Gaithersburg, MD. He is survived by his wife Michelle and three children.

The Morgan Messenger provided some facts for this article.

The Corner Steak & Sea Opens

by Lois Copeland

The Corner Steak & Sea opened in October where the former Inspirations Café was located. The new owners, Tom and Sandra Lombardos grew up in Berkeley Springs.

They are open for lunch and dinner Tuesday through Saturday, closes at 4 pm on Sundays and closed on Mondays. Reservations are encouraged.

Lunch includes soups, salads, sandwiches and entrees. I ordered their French onion soup and crab melt for lunch. Both were delicious, especially the crab melt. My daughter ordered the steak sandwich. The steak arrived as ordered, medium.

We came for dinner on a cold, snowy winter night and the restaurant was filled. The seafood scampi



Preparing our favorite dish

sounded delicious and it was. It arrived full of mussels, scallops and shrimp. My friends ordered the strip steaks. The steaks were tender and juicy.

A new restaurant is always a treat!

Rules We Live By by Gordon Cloney

At the Board's request, I have summarized for our member's easy reference the most important of CMA's rules and regulations set out over the years in the Covenants, the DACC Regulations and the CMA's Rules for Use of Property. This is the first time this has been done certainly in recent times and CMA members are urged to familiarize themselves with these very sensible standards. Members who rent properties will also want their rental agent and their tenants to be familiar since these rules protect your property as well as peace and quiet for everyone on the Mountainside. The Rules...will be posted on the CMA website shortly. As a next step the Board plans to list the most important day-to-day rules in a one page short form for posting. Later in the year we will return to the question to see if anything more is needed and wanted by the membership.

Rules and Regulations We Live By—The CMA Residential Standards

The Coolfont Mountainside Association (CMA) is a recreational community of periodically occupied privately owned, single residential cottages within a setting of permanent parks, natural wilderness, open spaces and common facilities existing for the benefit of every CMA member. Over the years the CMA has set out residential standards to protect and preserve the beauty and enhance the natural attraction of the peaceful mountainside forest in which this unique recreational community is located. The standards of greatest everyday importance are summarized here for ready reference by owners, tenants and their guests.

Every Mountainside resident benefits when these guidelines are universally respected and supported in practice by the entire Mountainside community. The CMA Board of Directors can initiate legal action if necessary to enforce CMA standards. Owners, tenants and their guests who do not conform to CMA regulations and procedures may be compelled to correct the problem created at their expense and/or provide restitution for certain activity (such as tree cutting) that did not receive prior approval.

I PRESERVATION AND CONSERVATION OF THE WOODLAND

Owners, their guests and their tenants are asked to give high priority to preservation and enhancement of natural terrain and natural plant growth, especially large and well preserved specimens, or exceptionally desirable species like dogwood, redbud and mountain laurel. In planting and replanting preference should be given to plant species native to the region. Invasive plant species *that are foreign to the region should not be introduced.*

Preservation and Use of Common Property: Lands owned by CMA are held exclusively for the common enjoyment of CMA members. Such common land is maintained in a natural or wilderness state unless improved with recreational facilities, permanent parks, trails, open spaces and other common facilities approved by the Association. No other use is permitted.

Tree Cutting is Restricted: Owners may remove, top or trim tress located within 10 feet of their house without approval, however no other trees over six inches in diameter may be cut, topped or trimmed on any lot or on common ground without written CMA approval. Requests to remove dead, damaged or diseased trees, weed trees or trees leaning towards a house or which pose a danger to residences are reviewed promptly and approved routinely by CMA.

Brush Fire Prevention: Because the Mountainside is a prime area for brush fires during dry months year around, CMA became West Virginia's first certified ***Firewise*** Community. Residents should comply with the spirit and recommendations of the ***Firewise Program*** of the West Virginia Division of Forestry. Residents are encouraged to clear leaves and burnable materials including firewood stacks within a distance of 30 feet of their residence as well as remove flammable materials stored under decks.

Exterior Fires: Open fires in or on the ground are not permitted. Stand-alone exterior gas, wood and charcoal grills and fire receptacles are permitted if factory manufactured and maintained in good condition. Receptacles in disrepair must be replaced. Permanently installed stone or brick barbecues with chimneys and spark arrestors are permitted only with prior CMA approval and must be located safely away from trees and shrubs.

II RESPECT FOR PEACE AND QUIET

Quiet, one of the Mountainside forest's most important natural assets, is essential to the peace and privacy CMA residents seek. Owners, tenants and their guests are asked to respect this natural resource.

Noise Restriction: Loud noise, barking dogs, the playing of music, radios, amplifiers, musical instruments, the operation of vehicles, and machinery by owners, tenants and their guests at volumes sufficient to disturb a neighboring residence is not permitted. Strict observation of this rule is requested from 11:00 pm to 7:30 am.

Construction and Tree Removal Noise Exceptions: Loud construction work including, but not limited to framing and carpentry, concrete pouring, paving, roofing, and the operation of chain saws for cutting trees and firewood is permitted between 7:30 am and 5:00 pm Monday through Friday. Only construction activity of a quiet nature is permitted at other times and on

(cont'd on p. 6)

New Coolfont Mountainside web site

By Bob Borchers, R8, CMA Webmaster



Late last year (2006), the CMA web site (http://coolfontmountainside.org) was upgraded to new technology (phpwebsite), permitting a variety of interactive and security features. Maintaining and modifying the site can be done from any web browser for users with administrative privileges. Among the many new features are:

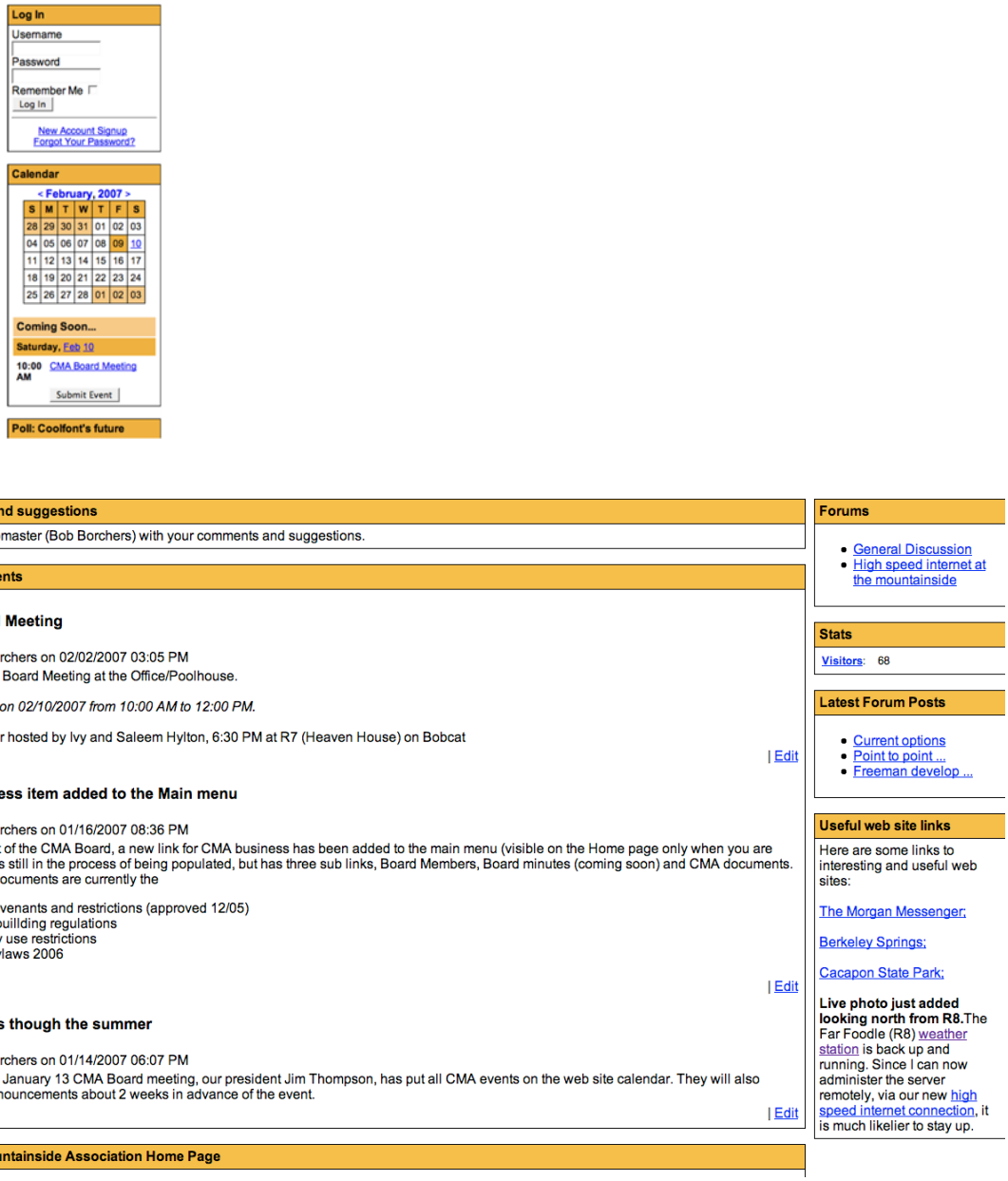
1. A community calendar, to which any member can add events of interest to the community. CMA board meetings and other CMA events are posted through most of the rest of 2007;
2. A poll, currently asking what concerns members most about the Freeman project for Coolfont. Water, traffic and property values are tops;
3. Members may submit community announcements. Calendar events also appear as announcements about 10 days before the event and are automatically removed after the event;
4. Interactive discussion forums on current topics allow members to post and receive information; and,
5. Numerous other informative and community topics.

In order to get the most of the content, which is specific or private CMA information, it is necessary to get a user account and log in to the site. (See following page) This can be done on the home page by clicking new account signup and entering a username and email address. After the account is approved, usually very quickly, a password will be assigned by the system and sent via email to the new account holder. It is important to note that the passwords are gibberish consisting of letters (both upper and lower case) and numbers. Since these passwords are case sensitive and impossible to remember, users are encourages to copy and paste them into the login box. As soon as you are logged in, you can go to the control panel called “My Settings” and change the password to something you can easily remember, but avoid using easy to guess passwords, like your last name. A combination of letters and numbers is safest.

After you are logged in, the home page changes and you will be able to see the main menu, which is the entry to all of the rest of the content on the site. Note that the communications item is expanded to show a secondary menu. The CMA business item also expands to a variety of member and Board business items and documents.

It is important to note that these items are not even visible or accessible without logging in. Thus, things like Directory entries and board minutes will never be seen by search engines and worms. In fact, all of the content of the site is maintained in a secure database that is automatically backed up on our server nightly.

So far, 75 user accounts have been created, meaning the site is visible to a very large fraction of Mountainside residents. I would encourage everyone to get an account. Also for members who are involved in the community business, it is very easy to assign administrative privileges allowing you to edit and update sections of the site.



The last figure shows the home page when the user logged in has admin. Note the edit links next to the announcements. Clicking on one of those links takes you to a page that allows you to change the item.

One final note, under the images menu are several photo albums including one for users to submit their favorite photographs. If you do not have a digital copy and want to submit one simply send me, the Webmaster, the photo and I will scan it and insert it for you and return the original.

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weekends.

Pets and Animals: Dogs and cats must be properly cared for and kept indoors at night. Barking dogs are prohibited. When walked outside the residence dogs must be on a leash at all times and may not roam or be chained outdoors. Other domestic animals are not permitted on the Mountainside.

Exterior Lighting: The light fixture sources for any exterior lighting should not be visible from or infringe upon neighboring property. The use of floodlights should be minimized and their installation requires prior written CMA approval.

Commercial Uses Prohibited: CMA residences and lots and CMA common ground may not be used for public business purposes including retail and wholesale sales and services, industrial and commercial operations, commercial storage or warehousing, institutional and educational facilities. No advertising of any type is permitted on lots, CMA right-of-way or common ground except realty signs approved by the CMA.

Hunting Prohibited: All forms of hunting are prohibited on CMA property.

III. USE OF ROADS AND DRIVEWAYS

All roads on the Mountainside are the private property of CMA intended for the exclusive use of members, tenants and guests. Proper vehicle operation is always required in accordance with West Virginia law.

Speed Limit on the Mountainside: 15 miles per hour.

Road Signs: CMA installs and maintains directional and other road and safety signs on the CMA right-of-way. No other signs are permitted on Mountainside roads.

Lot Signs: Owners are responsible for installing house name, street number and lot number signs, which should be located only at the entrance to individual driveways and must be visible to drivers of emergency vehicles. All signs should be of the same size, shape, font, and color as the CMA installed signs and located only on pressure-treated posts, not on trees. Individualized lot name signs will however be permitted subject to prior CMA approval as are realty signs. No other signs are permitted.

Roadway Parking Limitations: Residents are asked not to park on the CMA roadways or common ground except in specified parking areas. In emergency (snow) conditions roadside parking may be necessary but residents are asked to park so as not to block access by emergency and/or snow removal vehicles.

Driveways: Driveways must be maintained in good passable condition and provide at least 12' horizontal clearance and 14' overhead clearance to permit access by emergency vehicles. Driveway drainage must be controlled so as to not discharge water runoff onto CMA roads or infringe on neighboring property. Driveways may be paved after written permission is granted.

Residential Parking: Each residence may provide one parking space for each bedroom, or room readily used as a bedroom, with a minimum of two and maximum of six parking spaces including parking spaces in carports or garages. Overnight parking of more than the permitted number of vehicles is not permitted. No vehicle larger than a step van may be parked on a lot.

Trailers, Boats and Outside Storage: Trailers, RV's, ATV's, truck campers, trailers and trailered boats are not permitted to be parked on residential lots, driveways or CMA common ground. Materials, tools, equipment etc. may not be stored on lots, driveways or on common ground. Vehicles displaying advertising may only be parked in a garage or screened carport.

IV EXTERIOR APPEARANCE OF RESIDENCES

The individual properties at Coolfont must be maintained properly so as not to detract from the mountainside's scenic beauty. Members are urged to maintain their residence in good condition, their driveway well maintained and their lot neat and uncluttered.

Garbage and Trash Containers: These must be securely covered, "bear proof", enclosed, maintained in good condition and located so that they do not distract from the natural forest environment or are not unsightly from the road or neighboring property (s). The construction and replacement of trash container requires written CMA approval.

Clothes Drying: Outdoor clothes drying should be done only in screened areas, and not be visible from neighboring property or CMA roadways.

Playground Equipment: Playground equipment must be of colors consistent with CMA building standards.

Antennas and Satellite Dishes: The installation of antennas and satellite dishes requires CMA approval. These must be mounted in locations on the homeowner's property selected so as to minimize visibility from other CMA lots. Requests to install satellite dishes and antennas will be reviewed promptly and approved routinely by CMA.

V EXTERIOR MAINTENANCE PROCEDURES

All new building, all additions to existing cottages including, walls, exterior lighting installations, outdoor fireplaces, retaining walls, decks, porches, attached gazebos or other attached structures to be erected, replaced, repainted or modified requires the prior written CMA

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Internet for Coolfont

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Direct TV's internet service through satellite dishes mounted on or near their homes. Homes deep in the woods cannot get that reception. See www.DirectTV.com for more information. Also, local satellite dish providers can determine if your lot is able to receive satellite signals with great enough strength to carry internet data.

- Adelphia Cable—there have been discussions about cable being installed through out CMA, and the provider wants a guarantee of a minimum number of users in order to justify the investment in construction. It is important to note that to add cable throughout the community additional coaxial lines must be strung on the existing telephone poles, with individual cable lines connected to the subscribing homes. Another available option for cable would be burying the lines near our roads. Any of these changes to our natural environment would need to be addressed by the DACC and the board at the appropriate time. Adelphia's Hancock office is (888) 683-1000, and their website is www.Adelphia.com/High_Speed_Internet/.



High speed a must for those with home offices.

- Freeman community HSI access- with at least a couple of years before infrastructure is either designed and completed, it is unknown what provision The Freeman Companies will make for HSI in their neighborhoods.

Many of our CMA neighbors want internet access sooner, rather than later. If you'd like to know about the SkyWeb service contract Bob Borchers or Jim Thompson to learn of their experiences with this company.

There may be more providers out there, but this is the list I've been able to build so far. Please contact me at Jackson@baipr.com or at (703)540-9592 if you have questions or ideas.

Rules We Live By (cont'd from p 6)

approval. Contact CMA for more information on the procedures involved.

Prior Written CMA Approval: All exterior construction requires the submission for CMA approval of a written plan setting out the specifications, nature, kind, shape, height, materials, color and location of the same. Detailed information on CMA building standards and approval procedures can be obtained from the Association.

Detached Structures: Only a single structure, for residential use, is permitted on each lot. Second, detached structures such as garages, sheds, tents, etc. are not permitted. Fences are generally discouraged.

Accessory Structures: All accessory structures including decks, trash, containers, firewood enclosures walls and privacy fencing, exterior air conditioners and antennas are subject to CMA prior approval.

Construction Parking: Temporary construction vehicles, such as dumpsters and mobile construction shelters for no-residential use are permitted with prior written CMA approval.

Easement for Public Utilities: A right-of-way six feet wide along the perimeter of each lot is reserved for culverts, pipe lines, sewers, drains, water pipes, telephone lines and electric conduits and is at all times open to the Association and public utilities serving CMA.

From the President

by Jim Thompson

(cont'd from page 1)

tures. You can now enter your information for the CMA On-Line Directory on the private side of the website.

We completed requirements for renewing our Firewise sign. Thanks to all of you who volunteered your time for Firewise activities. For 2007 we will move our Firewise Day to April 14th. That will allow us to clean up before the summer fire season. There will be more daylight, hopefully warmer weather and we can get our 2007 recognition much earlier than in past years.

In addition to the Firewise Day and monthly Potluck dinners, the CMA schedule includes a Pool Beautification Day on May 19th, a Pool Party on June 10th and the CMA Annual Meeting on September 8th. Please put these events on your calendar and plan to join us!



Members listening intently

Coolfont Mountainside Association

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http://newsite.coolfontmountainside.org

We said a fond farewell to Lon and Jan Dring at an elegant New Year's eve party. They have played an integral part of CMA life for more than twenty-five years. Each served on the Board in many capacities and hosted numerous potlucks. His sense of humor helped solve many heated discussions on the board. In addition, Lon served as interim pastor in Hancock for several years. Meeting Lon and Jan at a party you would never know he is a man of the cloth. Now it's time for a change. They are moving to New Jersey to be close to their children.

One door closes and another opens.

We welcome Susan and Gat Caperton and their 3 daughters, Eliza, Katie and Evie. They will be residing full time at Q2. We look forward to many enjoyable times.

Many Questions, Few Answers

by Lois Copeland

I sat at dinner at a friend's house and everything seemed perfect. The fire from the wood burning stove roaring, soft lights glowing from the lanterns, a beautiful white blanket of snow outside, and none of us wishing we were in Florida in spite of single digit numbers; truly a Norman Rockwell scene. But I felt a little uneasy.

So many changes taking place and we won't know for several years the impact of these changes. Of course Coolfont development is first on my list. We face several years of construction. Not only will our peace and quiet be disrupted, but we face important negotiations between CMA and Carl Freeman Companies. Will they go smoothly?

Even though we knew Coolfont needed to be sold, having the facility felt safe. Jay could not run on the canal the past three weeks due to cold and ice. He felt an emptiness and then realized the spa was not available to fill his needs. Last year he headed to the spa, used the treadmill in the gym, relaxed in the sauna and finished up with a shower. Not having the convenience of the resort makes a huge difference.

It will be several years before Jay will have a place to go during these cold snowy days. Freeman's new Coolfont, including the gym, won't be completed for several years. And will we have use of it and if so how much will it cost?

Yes, this is a small inconvenience, but be sure there will be many, big and small. How many homeowners will sell their homes during the interim because of decrease in rentals? How will the new Resort affect our little piece of heaven? More homes, more people and more action all around us. How will the new Resort affect our home prices?



Habitat for all

I must admit I will be excited about the new amenities, but will they come at a cost? Will we still want to retire to our little piece of heaven?

What about the coming changes to Berkeley Springs? I'm afraid that will be another article.